

STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

IN RE: Scott Albergate

Application Tracking No. LI-244389

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Docket No. 2018-20

NOTICE OF FINAL APPLICATION DENIAL

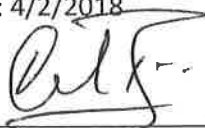
In the matter captioned above, a *Notice of Preliminary Denial* was served by certified mail, consistent with 3 V.S.A. § 129(e).

The 30-day appeal period has run, and there has been no request for review.

The decision to deny the application is now final, and the matter is closed.

DATED: 4/2/2018

By: _____



Colin R. Benjamin
Director of Professional Regulation



State of Vermont
Office of the Secretary of State

Office of Professional Regulation
89 Main Street, 3rd Floor
Montpelier, VT 05620-3402
www.sec.state.vt.us

James C. Condos, Secretary of State
Christopher D. Winters, Deputy Secretary
Colin R. Benjamin, Director

February 27, 2018

Scott Albergate
249 N Belfield Ave
Havertown, PA 19083

Notification of Preliminary Denial

Dear Scott Albergate:

The Office of Professional Regulation has preliminarily denied your application for Marriage and Family Therapist licensure. The basis for denial is that your education does not meet all of the requirements. This preliminary denial is based on *Administrative Rules of the Board of Allied Mental Health Practitioners*.

The Administrative Rules for Allied Mental Health Practitioners ("Rules") state that to be qualified for licensure an applicant must be a graduate of a COAMFTE accredited program OR meet the requirements of Rule 4.9. See Rule 4.3. Rule 4.9 states the following:

- (a) Degrees from Non-COAMFTE programs must contain 36 graduate credits.
- (b) Within the 36 graduate credits, a minimum of 18 must be primarily dedicated to and clearly identified as being from a marriage, couple, or family therapy/systems/relational perspective.
- (c) Degrees must be based on a curriculum which includes a supervised internship as set forth below.

Your Master's degree from Nashotah House Seminary does not meet the requirements of an acceptable degree, and the post-graduate certificate program from Counsel for Relationships cannot be counted as a degree program.

Therefore, you have not met the educational requirements for licensure. You may not sit for the exam or become licensed until all requirements are met; therefore, your license is preliminarily denied.

If you believe the Office is in error, you may appeal in the manner explained below.

Notice of Right to Appeal

You have the right to appeal this preliminary licensing decision. Within thirty (30) days of the date of this notice, mail notice that you wish to appeal, first-class, postage-prepaid to:

*Elizabeth A. Amaral, Docket Clerk
Vermont Secretary Of State
Office of Professional Regulation
89 Main Street, 3rd Floor
Montpelier, VT 05620-3402*

If you appeal, a hearing will be scheduled before an Administrative Law Officer. You will be notified of its date and time. You may bring witnesses and documents. You will bear the burden of showing that the license should be granted. You may have an attorney represent you. After hearing from you, the Administrative Law Officer will determine whether to affirm the decision, reverse the decision, or offer you an agreement whereby you could receive a conditional or limited license. There will be a written decision. 3 V.S.A. §129(e).

If you intend to have witnesses or other documents for the Administrative Law Officer to consider, you will be asked to submit the names, addresses, and telephone numbers of the witnesses and copies (x10) of the documents to the Docket Clerk before the hearing.

A complete copy of Vermont Statutes and Administrative Rules may be found on the Allied Mental Health website (<https://www.sec.state.vt.us/professional-regulation/list-of-professions/allied-mental-health.aspx>).

If you elect not to appeal this preliminary denial it will become final thirty (30) days from the date of this notice.

Sincerely,



Tara Grenier, MS
Licensing Administrator

Enclosures: Application